MINUTES OF THE CLARE COUNTY BOARD OF COMMISSIONERS COMMITTEE OF THE WHOLE

Approved 6-12-2024

225 W. Main St.
Harrison, Michigan 48625

~~Unapproved~~ minutes
June 5, 2024

Meeting was called to order at 9:00 a.m. by Chairman Jeff Haskell.

Pledge of Allegiance to the Flag of the United States of America.

Moment of silence for fallen firefighter Jeff Michels.

COMMISSIONERS PRESENT

District 1 Marlene Housler, District 2 Dale Majewski, District 3 Samantha Pitchford, District 4 Jeff Haskell, District 5 David Hoefling, District 6 Jack Kleinhardt, District 7 Gabe Ambrozaitis, District 8 George Gilmore and District 9 Rick Fancon

COMMISSIONERS ABSENT

None

OTHERS PRESENT

Clerk & Register of Deeds Lori Mott, Administrator Lori Phelps and members of the public

FINANCE AND ADMINISTRATION

1. Roxanne Foster – State Treasury Department Audit Discussion
   Roxanne Foster, Michigan Department of Treasury Senior Auditor presented the 2023 Clare County Audit. Ms. Foster was pleased to see continued improvements to items that have been issues in the past.

   Ms. Foster noted that the F-65 report was completed for the first time this year by Administrator Phelps and then went on to discuss capital assets, long term debt summary, pension debt/liability and the audit findings.

JUSTICE

1. Closed Session
   It was moved by Commissioner Majewski, seconded by Commissioner Gilmore to go into closed session under section MCL 15.268 of the Open Meetings Act to consult with our attorney regarding the Clare County Prosecuting Attorney v. Clare County & Clare County Board of Commissioners, roll call vote revealed:

   Yeas: (9) being Commissioners Majewski, Gilmore, Ambrozaitis, Housler, Hoefling, Kleinhardt, Fancon, Pitchford and Haskell
   Nays: (0)
   Absent: (0)
   Motion carried

   Entered into closed session at 9:30 a.m.
   Back in open session at 10:04 a.m.

JUSTICE - continued

1. Closed Session - continued
   It was moved by Commissioner Majewski, seconded by Commissioner Gilmore to approve the settlement agreement between the Clare County Prosecuting Attorney and Clare County and the Clare County Board of Commissioners, roll call vote revealed:

   Yeas: (2) being Commissioners Hoefling and Ambrozaitis
   Nays: (7) being Commissioners Majewski, Pitchford, Fancon, Housler, Gilmore Kleinhardt and Haskell
   Absent: (0)
   Motion failed

PHYSICAL RESOURCES

1. EV Charging Station Discussion and Contract Review
   There would be 2 spaces with 2 parking spots each at no cost to Clare County and would receive $0.03 per kilowatt. The Company will maintain and service chargers. Commissioners questioned the following sections of the contract:

   What is the authority of the County Commissioners to stop non-electric cars from parking in the electric vehicle space as noted in the contract? It was agreed that the County Security/Sheriff will enforce.

   Clarification is needed on page 4 of paragraph 12, it should spell out that maintenance of site equipment should be maintained by CEV (Charge EV, LLC).

   If the Company goes bankrupt and closes it appears the liability of removing the stations would be on the County.

   Administrator Phelps will get clarification on these sections of the contract and put this item on the agenda at the next meeting.

2. Hayes Township Blight Contract Discussion
   Administrator Phelps noted that Commissioner Gilmore had concerns regarding the contract and the attorney made requested changes regarding liability of litigation. Commissioner Ambrozaitis requested to see the changes; Administrator Phelps will get the original contract to the Commissioners and outline the changes.

3. Weapons Policy
   55th Circuit Court Judge Tara Hovey presented the Weapons Policy to the Board of Commissioners. Judge Hovey noted that there is already a Weapons Policy in place and the major change would be that employees and attorneys would be required to enter through security instead of bypassing, as is currently being done. The Board of Commissioners had no questions.

4. Airport Crack/Seal and Paint Contract
   Commissioner Ambrozaitis presented the crack, seal and paint contract to the Board of Commissioners. MDOT (Michigan Department of Transportation) has excess recovery funds and has offered a no match grant to Clare County. The contract allocates $19,952.60 for crack sealing and $28,588.80 for paint marking of the Airport Runway, at no cost to Clare County.

PHYSICAL RESOURCES – continued

4. Airport Crack/Seal and Paint Contract - continued
   Commissioner Gilmore questioned if those funds would have to be paid back if the Board of Commissioners closed the Airport. Commissioner Ambrozaitis confirmed that the funds would not have to be paid back. Commissioner Ambrozaitis went on to state that the County Airport is an economic development engine for Clare County and Harrison to continue to bring and attract business for Clare County and Hayes Township and recommended this item be brought forward to the next meeting for vote. The contract will be on the next meeting agenda.

FINANCE AND ADMINISTRATION - continued

2. Redding Township Property Offer Discussion
   Kari Garber from Harrison Realty presented the offer to purchase the Redding Township property in the amount of $25,000.00. Ms. Garber confirmed that the market value of the property would be $32,500 - $34,500.

   It was moved by Commissioner Ambrozaitis, seconded by Commissioner Hoefling to make a counter-offer in the amount of $32,000.00, **motion carried**.

3. Conservation District Property Purchase
   Administrator Phelps confirmed that Clare County leases a 12-acre parcel off from M-61 for $1.00 per year. The Conservation District has the opportunity to receive a grant for the property, but cannot accept the grant unless they own the property or have a 99-year lease agreement. It was agreed that a 99-year lease agreement will be brought to the next board meeting for $1.00 per year.

4. Courtroom Seating Discussion
   Administrator Phelps brought to the Commissioners attention that she has been looking for an alternative to the current benches in the courtrooms. The current benches are in disrepair and need to be replaced. Administrator Phelps found on Facebook Marketplace pews for sale that would work well as replacements for the current benches. Administrator Phelps would normally just make the purchase, but wanted to alert the Board of Commissioners to the purchase because the pews were listed for sale by the County Clerk/Register of Deeds and wanted to make sure the purchase was made transparent. No one opposed the purchase of pews.

5. Airport Lease Increase Discussion
   The current lease agreements were renewed in 2022 for a period of 7-years and indicated no increase in the first and last year. The lease was increased by 5% last year and Commissioner Ambrozaitis proposes another increase of 5% this year based on the Airport Committee approval. The 5% increase this year would be $14.03 total new rate of $294.81 effective July 1, 2024. This item will be moved to the agenda at the next meeting.

It was moved by Commissioner Haskell, seconded by Commissioner Hoefling to authorize Ms. Garber to negotiate the highest offer she can get for the piece of property in Redding Township, **motion carried**.

Meeting adjourned at 10:38 a.m.

Lori Mott, Clerk
Clare County Board of Commissioners

Jeff Haskell, Chairman
Clare County Board of Commissioners